

2012 WL 421124 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Corey AKERS, Plaintiff,

v.

P.O. Jonmiche LOBOSCO, P.O. **Dudley Ewald**, the City of New York, "John Doe No. 1" and "John Doe No. 2" (the name John Doe being fictitious and intended to designate the police officers) and the Police Department of the City of New York, Defendants.

No. 0001105-2012.
January 13, 2012.

Verified Complaint

Greg Garber, Esq., Attorney for Plaintiff, 60 Madison Ave - Suite 1005, New York, N.Y. 10010, (212) 779-2740.

TO THE DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in the this action and to serve a copy of your answer or, if the complaint is not served with summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of you failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York January 13, 2012

Plaintiff, by his attorney, GREG GARBER, ESQ., complaining of the above named defendants respectfully alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION PLAINTIFF COREY AKERS ALLEGES:

1. That at all times hereinafter mentioned, the Plaintiff COREY AKERS was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK is was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the City and State of New York.
3. That at all times relevant to this action, the Defendant THE POLICE DEPARTMENT OF THE CITY OF NEW YORK ("NYPD") is an agency of the Defendant THE CITY OF NEW YORK, with principal offices located at One Police Plaza, New York City, New York.
4. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, created and maintained a police department, namely, the Defendant, NEW setting forth therein the matters required by [Section 50\(e\) of the General Municipal Law](#) and Section 1812 of the Public Authority Law.

10. That said verified statement of Plaintiffs claim included, among other things, the name and post office address of the Plaintiffs and his attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.

11. That at least thirty (30) days have elapsed since the verified statement of this Plaintiffs claim and notice of intention to sue herein referred to was served upon the Defendant THE CITY OF NEW YORK and the Defendant has failed to make an adjustment of payment thereof and this action has been commenced within one (1) year and ninety (90) days of the cause of action herein alleged had occurred.

12. That while a hearing was scheduled by Defendant, THE CITY OF NEW YORK, pursuant to the General Municipal Law of the State of New York and authorization was given to the Defendant, to conduct a physical examination of the Plaintiff at its request, Defendant adjourned said hearing without a future date and without explanation. Plaintiff remains able to appear for such, if demanded by the Defendant.

13. That this action is being commenced within one (1) year and ninety (90) days of the date of the occurrence herein.

14. That at all times hereinafter mentioned and specifically on June 8, 2011, the Defendant, P.O. JONMICHE LOBOSCO was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

15. That at all times hereinafter mentioned and specifically on June 8, 2011, the Defendant, P.O. **DUDLEY EWALD** was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

16. That at all times hereinafter mentioned and specifically on June 8, 2011, the Defendant, JOHN DOE NO. 1 was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

17. That at all times hereinafter mentioned and specifically on June 8, 2011, the Defendant, JOHN DOE NO. 2 was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

18. Upon information and belief that at all times herein mentioned Defendant, P.O. JONMICHE LOBOSCO was a Police Officer in the NYPD employed by Defendant CITY OF NEW YORK attached and/or assigned to the 70th Precinct in the County of Kings, City and State of New York.

19. Upon information and belief that at all times herein mentioned defendant, P.O. **DUDLEY EWALD** was a Police Officer in the NYPD employed by Defendant CITY OF NEW YORK attached and/or assigned to the 70th Precinct in the County of Kings, City and State of New York.

20. Upon information and belief that at all times herein mentioned Defendant, JOHN DOE NO. 1 was a Police Officer in the NYPD employed by Defendant CITY OF NEW YORK attached and/or assigned to the 70th Precinct in the County of Kings, City and State of New York.

21. Upon information and belief that at all times herein mentioned Defendant, JOHN DOE NO. 2 was a Police Officer in the NYPD employed by Defendant CITY OF NEW YORK attached and/or assigned to the 70th Precinct in the County of Kings, City and State of New York.

22. That Police Officer JONMICHE LOBOSCO is a person who at the time and place herein mentioned, was a police officer in the NYPD employed by the Defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

23. That Police Officer **DUDLEY EWALD** is a person who at the time and place herein mentioned, was a police officer in the NYPD employed by the Defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

24. That Police Officer JOHN DOE NO. 1 is a person who at the time and place herein mentioned, was a police officer in the NYPD employed by the Defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

25. That Police Officer JOHN DOE NO. 2 is a person who at the time and place herein mentioned, was a police officer in the NYPD employed by the Defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

26. Upon information and belief that at all times herein mentioned the Defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees operated, maintained, and controlled the aforementioned Defendant police officers.

**AS AND FOR A FIRST CAUSE OF ACTION BY THE PLAINTIFF
AGAINST THE DEFENDANTS, JOINTLY AS WELL AS SEVERALLY**

27. The Plaintiff repeats and reiterates each and every allegation contained in paragraphs designated “1” through “26” herein as if said allegations were set forth in their entirety herein.

28. That on June 8th, 2011 the Defendant P.O. JONMICHE LOBOSCO was on duty and was acting within the scope of his authority as a Police Officer for the Defendant, THE CITY OF NEW YORK and the NYPD.

29. That on June 8th, 2011 the Defendant P.O. **DUDLEY EWALD** was on duty and was acting within the scope of his authority as a Police Officer for the Defendants, THE CITY OF NEW YORK and the NYPD.

30. That on June 8th, 2011 the Defendant JOHN DOE NO. 1 was on duty and was acting within the scope of his authority as a Police Officer for the Defendants, THE CITY OF NEW YORK and the NYPD.

31. That on June 8th, 2011 Defendant JOHN DOE NO. 2 was on duty and was acting within the scope of his authority as a Police Officer for the Defendant, THE CITY OF NEW YORK and the NYPD.

32. That on or about the 8th day of June, 2011, the Plaintiff was arrested by the Defendant Police Officers at or near the corner of Beverly Road and East 22nd Street, County of Kings, City and State of New York and continuing thereafter to the 70th Precinct, County of Kings, City and State of New York.

33. That before, during and after the aforementioned arrest, the Plaintiff was assaulted, beaten, battered and harassed by the Defendants P.O. JONMICHE LOBOSCO, P.O. **DUDLEY EWALD**, JOHN DOE NO. 1 and JOHN DOE NO. 2 in that they unlawfully and intentionally menaced, struck, beat and otherwise touched the Plaintiff without justification, excuse or consent and more specifically, the Plaintiff was run down by a police car operated by said Defendants, was thrown to the ground, maced in the face while handcuffed and under complete control and thereafter dragged and forcefully placed in handcuffs.

34. That on or about the 8th day of June, 2011, the Plaintiff was falsely, wrongfully and illegally arrested, due to the negligence, culpable conduct, carelessness and recklessness of the Defendants, THE CITY OF NEW YORK and the NYPD in failing to properly hire and train its police officers herein, including the Defendant Police Officers herein, as a result whereof the Plaintiff was caused to sustain serious and permanent personal injuries.

35. That on or about the 8th day of June, 2011, while the Plaintiff was being falsely, unlawfully and illegally arrested, due to the willful and malicious conduct of Defendants, the Plaintiff was caused to sustain serious personal injuries.

36. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the Defendants, THE CITY OF NEW YORK and the NYPD in failing to properly hire and train its police officers; in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly assaulting, attacking and abusing the Plaintiff; in violating the applicable rules, statutes and ordinances which govern the activities of the Defendants, its agents, servants, and/or employees and in otherwise being negligent in the premises.

37. In doing and performing all the acts and things aforesaid, the Defendants acted willfully and maliciously.

38. In doing and performing all the acts and things aforesaid, the Defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

39. In doing all the acts and things aforesaid, the Defendants, THE CITY OF NEW YORK and the NYPD, their agents, servants and/or employees, acted negligently in failing to properly hire and train its police officers.

40. That before, during and after the aforementioned false, unlawful and illegal arrest, the Plaintiff was assaulted and battered by the Defendants in that they unlawfully and intentionally menaced, struck, beat, dragged and otherwise touched the Plaintiff without justification, excuse or consent.

41. In doing all the acts and things aforesaid, the Defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

42. That by reason of the foregoing, the Plaintiff was caused to and did in fact sustain severe, painful and serious personal injuries in and about his head, limbs and body; became sick, sore, lame and disabled; was caused to suffer contusions, abrasions, lacerations, dislocations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, mental anguish and bodily injuries; was confined to a hospital, bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the Plaintiff was greatly injured both bodily and mentally; has been prevented from engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

43. This action, as well as all causes of action pleaded herein, fall within one or more of the exceptions set forth in [CPLR ss 602, et seq.](#)

44. That the amount of damages sustained by the Plaintiff as a result of the aforesaid serious personal injuries and pecuniary losses are in a substantial sum of money to be determined by the court and jury.

45. That the amount of said damages sustained by the Plaintiff as a result of the aforesaid illegal and wrongful acts of the Defendants exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

46. That the Plaintiff alleges that he is entitled to a money judgment against the Defendants, jointly, as well as severally, in an amount that exceeds the jurisdictional limitations of all lower Courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL OF THE DEFENDANTS
JOINTLY AS WELL AS SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:**

47. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated “1” through “46” inclusive of this complaint, with the same force and effect as if herein fully set forth at length.

48. That the Defendants acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others, and more particularly the Plaintiff herein and did so.

49. That the Defendant Police Officers acted deliberately with knowledge of and in disregard of the Plaintiffs rights and with the intent to interfere therewith and deliberately with intent to cause serious bodily harm to the Plaintiff herein and did so.

50. That in doing all the acts and things aforesaid, the Defendants acted negligently in failing to use such care in the performance of police duties as a reasonable prudent and careful police officer would have used under similar circumstances.

51. In doing all the acts and things aforesaid the Defendant, THE CITY OF NEW YORK, the NYPD, their agents servants and/or employees acted negligently in failing to properly hire and train its police officers.

52. That by reason of the wanton, reckless and malicious acts by the Defendants as aforesaid, the Plaintiff alleges that he is entitled to punitive damages in addition to all other damages against the Defendants, jointly, as well as severally, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this accident.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE
DEFENDANTS JOINTLY AS WELL AS SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:**

53. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated “1” through “52” inclusive of this complaint, with the same force and effect as if herein fully set forth at length.

54. That on June 8th, 2011 the Defendants wrongfully and illegally arrested the Plaintiff, COREY AKERS, and restrained him of his liberty.

55. This arrest was made without warrant or other legal process and was illegal and unlawful, in that no crime had been committed and in that there was no reason or cause for belief that the Plaintiff had committed any crime.

56. In doing all the acts and things aforesaid, the Defendants acted willfully and maliciously.

57. After having been arrested, the Plaintiff, COREY AKERS, was wrongfully and illegally held in custody and restrained of his liberty until he was released.

58. That while under arrest and deprived of his liberty, the Plaintiff, COREY AKERS, was taken to a police station, finger printed and “booked.” Plaintiffs name and pedigree were entered on the police records according to the police practice on the arrest of criminals, and a charge was entered that he had been arrested.

59. That by reason of the foregoing the Plaintiff was unlawfully detained and falsely imprisoned.

60. That by reason of the foregoing the Plaintiff was restrained without adequate legal justification.

61. The Defendants P.O. JONMICHE LOBOSCO, P.O.DUDLEY EWALD, JOHN DOE NO. 1 and JOHN DOE NO. 2 were acting in the scope of their employment as police officers for the Defendants, THE CITY OF NEW YORK and the NYPD and as such had a legal authority to arrest people under the proper circumstances.

62. That prior to the arrest, the Plaintiff, COREY AKERS, had enjoyed a good reputation in the City of New York, particularly for honesty.

63. That at all times hereinafter mentioned, this plaintiff was conscious of the confinement inflicted upon him and did not consent to the confinement.

64. That at all times hereinafter mentioned, the aforementioned the arrest, confinement and false imprisonment of the Plaintiff was not privileged.

65. That in order to procure his release from the arrest and imprisonment as aforesaid, the Plaintiff was required to employ counsel, and was put to other expenses.

66. That as a result of all the acts of Defendants as aforesaid, the Plaintiff was greatly humiliated and subjected to mental and bodily distress all to the Plaintiff's damage.

67. That by reason of the foregoing the Plaintiff, COREY AKERS' civil rights under [42 U.S.C. Section 1983](#) were violated in that the Plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by individuals (the Defendants herein) who, under color of a statute or regulation of a State, caused the Plaintiff to be so deprived and other and further violations of Plaintiffs rights and privileges secured to him under the Constitutions of the United States and the State of New York.

68. That the amount of said damages sustained by the plaintiff and that he is entitled to recover against the Defendants, jointly, as well as severally, as a result of the aforesaid actions exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

69. That in addition to those damages recoverable for the Defendants' actions, the Plaintiff is entitled to recover reasonable attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE
DEFENDANTS JOINTLY AS WELL AS SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:**

70. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through "69" of this complaint, with the same force and effect as if herein fully set forth at length.

71. That on June 8th, 2011, the Plaintiff was falsely, wrongfully and illegally arrested.

72. That on June 8th, 2011, the Plaintiff was arrested in front of, contiguous to and at the corner of Beverly Road and East 22nd Street, in the County of Kings, City and State of New York and was taken to the 70th Precinct and Central Booking and was thereafter illegally and wrongfully imprisoned and confined.

73. That as a result of this false, wrongful and illegal arrest and malicious prosecution of the Plaintiff by Defendants, the Plaintiff was subjected to great indignity and humiliation, pain and distress of his mind and body, was prevented from attending to his usual business, was subjected to expense in the procurement and services of counsel in his defense upon these wrongful and bogus charges and was injured in his good name and reputation in the community, all to the Plaintiffs damage.

74. That the amount of said damages sustained by the plaintiff and recoverable against the Defendants as a result of the aforesaid actions, exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS JOINTLY AS WELL AS SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:

75. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated “1” through “74” of this complaint, with the same force and effect as if herein fully set forth at length.

76. That at all times hereinafter mentioned, defendants herein and each of the aforesaid police officers acting under color of law, and without lawful authority or right, did violate plaintiff's constitutional rights guaranteed under the Fourth, Fifth and Fourteenth Amendments of the Federal Constitution.

77. By reason of the violation of the Plaintiff's civil rights, the Plaintiff demands compensatory and punitive damages against the Defendants, jointly, as well as severally, in such sums, along with reasonable attorney's fees, which exceeds the jurisdiction of all lower Courts that might otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS JOINTLY AND SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:

78. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated “1” through “77” inclusive, of this complaint, with the same force and effect as if herein fully set forth at length.

79. That the actions of the Defendants, THE CITY OF NEW YORK, the NYPD, the individual Defendant Police Officers, their agents, servants and/or employees, as alleged herein, were malicious, willful and grossly negligent.

80. That the action of the Defendants, P.O. JONMICHE LOBOSCO, P.O.DUDLEY EWALD, JOHN DOE NO. 1 and JOHN DOE NO. 2, as alleged herein, were malicious, willful, intentional and grossly negligent.

81. That the Defendants, THE CITY OF NEW YORK and the NYPD, sanctioned, authorized, permitted and ratified the unlawful, wrongful, illegal and negligent acts of its agents, servants and/or employees.

82. That by reason of the assault and battery to the Plaintiff, as described herein, the Plaintiff alleges that he is entitled to recover compensatory and punitive damages against the Defendants, jointly, as well as severally, which exceed the jurisdiction of all lower Courts that might otherwise have jurisdiction over this matter in addition to reasonable counsel fees.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS JOINTLY AND SEVERALLY THE PLAINTIFF COREY AKERS ALLEGES:

83. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated “1” through “82” this complaint, with the same force and effect as if herein fully set forth at length.

84. That on or about the 8th day of June, 2011, the Plaintiff was lawfully at or near the corner of Beverly Road and East 22nd Street, County of Kings, City and State of New York, and was not engaged in any criminal or unlawful conduct.

85. That the time and place aforesaid, the Plaintiff was assaulted, battered, slandered, falsely arrested and falsely imprisoned and otherwise had his civil rights violated by the Defendants, by their agents, servants, and/or employees, including the Defendants,

P.O. JONMICHE LOBOSCO, P.O.DUDLEY EWALD, JOHN DOE NO. 1 and JOHN DOE NO. 2, all of whom were acting within the scope of their authority in their positions as Police Officers, agents, servants and/or employees of the Defendants, THE CITY OF NEW YORK and the NYPD.

86. That the aforementioned Defendants, P.O. JONMICHE LOBOSCO, P.O.DUDLEY EWALD, JOHN DOE NO. 1 and JOHN DOE NO. 2, knowingly, intentionally and willfully assaulted and battered the Plaintiff.

87. That the aforementioned Defendants P.O. JONMICHE LOBOSCO, P.O. **DUDLEY EWALD**, JOHN DOE

88. That the aforementioned Defendants, P.O. JONMICHE LOBOSCO, P.O.DUDLEY EWALD, JOHN DOE NO. 1 and JOHN DOE NO. 2, had the purpose and intention of inflicting severe bodily injury upon the Plaintiff herein.

89. That the Defendants intentionally caused emotional distress to the Plaintiff by virtue of the wrongful and illegal acts described herein.

90. That the actions of the Defendants were designed to inflict severe emotional distress upon the Plaintiff and not performed for any legitimate or lawful purpose.

91. That by reason of said assault and battery, the Plaintiff was caused to suffer severe and serious injuries in and about diverse parts of his person, and suffered great pain, distress, mental shock, mental and emotional anguish and psychological and emotional trauma and was otherwise injured.

92. That by reason of the assault and battery upon the Plaintiff, the false imprisonment and false arrest and the intentional infliction of emotional distress upon the Plaintiff by the Defendants as aforesaid, the Plaintiff alleges that he is entitled to recover compensatory and punitive damages against the Defendants, jointly, as well as severally, in such amounts that exceed the jurisdiction of all lower Courts that might otherwise have jurisdiction over this matter in addition to reasonable counsel fees.

WHEREFORE, the Plaintiff COREY AKERS, respectfully demands judgment against the Defendants THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER JONMICHE LOBOSCO, POLICE OFFICER **DUDLEY EWALD**, Police Officer JOHN DOE NO. 1 and Police Officer JOHN DOE NO. 2, jointly, as well as severally, on the First through Seventh Causes of Action, in such amounts which exceeds the jurisdiction limits of all lower Courts which would otherwise have jurisdiction over this action, together with interest, costs and disbursements and reasonable attorney's fees of this action.

Dated: New York, New York January 13, 2012

Yours etc

GREG. GARBER, ESQ.

Attorney for Plaintiff

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